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Case Number: 25PSCV00313 Hearing Date: August 31, 2026 Dept: 6

CASE

NAME: Laurie

Houshan v. Ford Motor Company, et al.

Plaintiff's

Motion to Compel the Deposition of Defendant's Person(s) Most Knowledgeable and
Request for Monetary Sanctions

TENTATIVE

RULING

The Court GRANTS in part Plaintiff's Motion to Compel the Deposition of Defendant's Person(s) Most Knowledgeable and Request for Monetary Sanctions. Ford must produce all responsive documents within its possession, custody, or control, to Request Numbers 1, 3, 4, 5, 6, 7, 8, 10, 11, and 17. Ford must also produce all responsive documents within its possession, custody, or control, to Request Numbers 2, 12, 13, 14, 15, and 16, limited to January 2020 to the date Plaintiff filed the Complaint and vehicles of the same make and model as Plaintiff's vehicle. The Court SUSTAINS Ford's objection to Request Number 9. Ford must produce the foregoing documents to Plaintiff's counsel within 20 calendar days of the Court's order, subject to a protective order for confidential policy materials.. To the extent any responsive documents are withheld on the basis of privilege, Ford must provide a privilege log.

Regarding the deposition, Ford's PMK must appear for deposition within 30 calendar days of the Court's order and must be prepared to testify to the extent reasonably possible regarding Matters for Examination Numbers 1, 3,

4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 18, and 31. Ford's PMK must be also prepared to testify to the extent reasonably possible regarding Matters for Examination Numbers 2, 16, 17, 19, 20, 21, 22, 23, 24, 26, 27, 28, and 29, limited to January 2020 to the date Plaintiff filed the Complaint and vehicles of the same make and model as Plaintiff's vehicle, subject to a protective order for confidential policy materials. The Court SUSTAINS Ford's objections to Matters for Examination Numbers 25, 30, 32, 33, and 34.

The Court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a Song-Beverly action. On January 28, 2025, plaintiff Laurie Houshan (Plaintiff) filed this action against defendants Ford Motor Company (Ford), Colley Auto Cars, Inc. d/b/a Colley Ford (Colley) (collectively, Defendants), and Does 1 through 10, alleging causes of action for violation of Song-Beverly Act – breach of express warranty, violation of Song-Beverly Act – breach of implied warranty, violation of the Song-Beverly Act section 1793.2, and negligent repair.

On July 15, 2026, Plaintiff moved to compel the deposition of Defendant Ford's Person(s) Most Knowledgeable and for monetary sanctions. On August 17, 2026, Ford opposed the Motion. Plaintiff did not reply to Ford's Opposition.

LEGAL STANDARD

(a)

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document,

electronically stored information, or tangible thing described in the deposition notice.

(b)

A motion under subdivision (a) shall comply with both of the following:

(1)

The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2)

The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ.

Proc., § 2025.450, subds. (a)-(b).)

PRELIMINARY ISSUES

Plaintiff's

memorandum of points and authorities submitted in support of the Motion exceeds the 15-page limit for such memorandums. (Cal. Rules of Court, rule 3.1113, subd. (d).) Plaintiff's Motion is therefore untimely. (Id., rule 3.1113, subd. (g).) The Court will still consider Plaintiff's Motion, but nevertheless admonishes Plaintiff to comply with the California Rules of Court going forward. (Id., rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

The Court also notes that the parties' briefs contain inaccurate citations and quotations. For example, Ford's Opposition cites to and quotes from *Goodyear v. Haeger* (2017) 137 U.S. 1178, but the correct citation is *Goodyear Tire & Rubber Co. v. Haeger* (2017) 581 U.S. 101. (See Opp., 11:16-18.) Plaintiff's Motion, on the other hand, cited *Mexia v. Rinker Boat Co., Inc.* (2009) as 17 Cal.App.4th 1297, but the correct citation is 174 Cal.App.4th

1297. The Court admonishes the parties to ensure the citations are correct before filing going forward.

The Court further notes that Plaintiff's Motion misquotes from *Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390 (*Maldonado*). Specifically, Plaintiff's Motion says, "If the deponent named is not a natural person . . . the deponent shall designate and produce at the deposition those of its . . . agents who are most qualified to testify on [the entity's] behalf as to those matters to the extent of any information known or reasonably available to the deponent." (Motion, 14:16-18, bold and italics in original.) However, that part of *Maldonado* actually reads, "if a deposition notice describes matters on which examination is requested, 'the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.'" Plaintiff's Motion also omits the words "and expenses" from its citation to and quotation from *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771. (Motion, 22:15.) Plaintiff's Motion contains other similar misquotations throughout it. The Court will discuss these matters with Plaintiff's counsel at the hearing on this Motion.

DISCUSSION

Meet and Confer

The Court finds Plaintiff's efforts to meet and confer before bringing this Motion sufficient. (Minute Order (7/14/26); Code Civ. Proc., § 2025.450, subd. (b)(2).)

Summary of Arguments

Plaintiff

moves under Code of Civil Procedure sections 2025.450 and 2031.310 to strike Ford's objections and compel the deposition of Defendant's Customer Relations Center (CRC) person most knowledgeable (PMK) on Matters for Examination 1 through 34, together with production of documents responsive to Requests for Production 1 through 17. Plaintiff contends that over more than a year she served at least three deposition notices and sought firm CRC and technical deposition dates on multiple occasions, but that Ford engaged in bad-faith

obstruction and delay, produced no CRC witness or responsive documents, and responded only with boilerplate objections. Plaintiff argues that the requested testimony and documents—including Ford's internal investigations, warranty and repurchase policies, and knowledge of the same or similar defects in other vehicles—are relevant to her Song-Beverly claims and to establishing a willful violation supporting a civil penalty.

In

opposition, Ford contends the Motion should be denied as moot because it already produced a witness on May 20, 2025, addressing the 11 statutory Matters, agreed to produce documents regarding the subject vehicle, and has a CRC witness scheduled for deposition on August 26, 2026. Ford argues there is no prejudice given that trial is not until December 2026 and its responses and objections were timely served in advance of each noticed deposition. Ford maintains that its responses were code-compliant and its objections proper: it agreed to produce witnesses and documents on the Matters and Requests tied to the subject vehicle and Plaintiff's own repurchase request, but objected to Matters and Requests seeking testimony about other customers, other vehicles, and general policies as overly broad, unduly burdensome, and seeking irrelevant information not limited to the subject vehicle, components, or a reasonable timeframe. Ford further argues the Motion is procedurally deficient because Plaintiff addresses the objections only in generalized terms rather than showing good cause as to any specific Matter or Request.

Analysis

First,

the Court finds Ford's indication that it agreed to produce its CRC PMK for deposition on August 26, 2026, does not necessarily resolve the issues concerning that deposition given Ford's objections to many of the Matters for Examination and the Requests for Production.

Second,

Ford objects to nearly every Matter and several Requests on the ground that the topic "could encompass" privileged material, but a corporate party may not refuse to designate a witness or withhold an entire category based on such speculation. Privilege objections at a deposition must be asserted in response to each question and withheld documents must be identified in a privilege log, which Ford did not provide. (See Code Civ. Proc., § 2025.460, subd. (a))

[deposition privilege objections must be timely asserted during deposition or they are waived]; id., § 2031.240, subd. (c)(1) [privilege log for document production requests].)

Third, Plaintiff may inquire regarding other customers' vehicles, albeit those of the same make and model as Plaintiff's within the state of California limited to a reasonable time period, e.g., from January 2020 to the date Plaintiff filed the Complaint. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-974, 976, fn. 2, 977, 993.)

Fourth, the Court agrees with Ford that Plaintiff seeking PMK testimony about Ford's own pleadings, discovery responses, and documents produced, i.e., Matters 18, 32, 33, and 34, and the facts supporting affirmative defenses, other than non-privileged facts, i.e., Matter 30, are not proper Matters for Examination. Additionally, Matter Number 25 involving Ford's ownership of Colley is irrelevant. (Code Civ. Proc., § 2017.010.)

Fifth, Ford's argument that Plaintiff made no repurchase request before filing is not a basis for refusing to produce responsive discovery.

Sixth, Ford need not provide documents of the PMK's job description since it has little relevance to the underlying dispute. (Code Civ. Proc., § 2017.010.) The PMK can testify at the deposition regarding the PMK's job description.

Based on the foregoing, the Court rules as follows on Ford's objections to Plaintiff's Requests for Production:

1. Request

Numbers 1, 3, 4, 5, 6, 7, 8, 10, 11, 17 = OVERRULED. Ford must provide all responsive documents within its possession, custody, or control, to Plaintiff's counsel within 20 calendar days of the Court's order, subject to a protective order for confidential policy materials.

2. Request

Numbers 2, 12, 13, 14, 15, 16 = OVERRULED in part. Ford must produce all responsive documents within its possession, custody, or control, limited to January 2020 to the date Plaintiff filed the Complaint and vehicles of the same make and model as Plaintiff's vehicle. from subject to a protective order for confidential policy materials.

3. Request

Number 9 = SUSTAINED.

4. To the extent

any responsive documents are withheld on the basis of privilege, Ford must provide a privilege log.

Regarding the Matters for Examination for Ford's PMK, the Court rules as follows:

1. Ford's PMK

must appear for deposition within 30 calendar days of the Court's order.

2. Matter

Numbers 1, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 18, 31 = OVERRULED.

Ford's PMK must be prepared to testify on these topics to the extent reasonably possible.

3. Matter

Numbers 2, 16, 17, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29 = OVERRULED in part. Ford's PMK must be also prepared to testify on these topics to the extent reasonably possible, limited to from January 2020 to the date Plaintiff filed the Complaint and vehicles of the same make and model as Plaintiff's vehicle t, subject to a protective order for confidential policy materials.

4. Matter

Numbers 25, 30, 32, 33, 34 = SUSTAINED.

The Court DENIES Plaintiff's request for monetary sanctions, finding that Ford acted with substantial justification opposing this Motion. (Code Civ. Proc., § 2025.450, subd. (g)(1); id., § 2031.310, subd. (h).)

CONCLUSION

The Court GRANTS in part Plaintiff's Motion to Compel the Deposition of Defendant's Person(s) Most Knowledgeable and Request for Monetary Sanctions. Ford must produce all responsive documents within its possession, custody, or control, to Request Numbers 1, 3, 4, 5, 6, 7, 8, 10, 11, and 17. Ford must also produce all responsive documents within its possession, custody, or control, to Request Numbers 2, 12, 13, 14, 15, and 16, limited to January

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The Court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.